

Tentative Rulings
July 9, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. The Court will sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

29. *Boyd v. Cogent Infotech Corporation, et al*, Case No. CIVSB2409307
Motion for Final Approval of Class Action Settlement
7/9/26, 1:30 p.m., S-17

The Court would **GRANT**.

This is a putative wage-and-hour class and representative action. Plaintiff alleges that he and other similarly situated individuals are or were non-exempt employees of Defendant and were subject to various wage-and-hour violations. He submitted his notice letter to the LWDA on March 14, 2024. He first filed this putative wage-and-hour class complaint (CIVSB2409307) on March 20, 2024. Then, after the exhaustion of administrative remedies, he filed a representative action for civil penalties pursuant to the Private Attorneys General Act (PAGA) on May 21, 2024 (CIVSB2417458).

Later, he filed a First Amended Complaint (FAC) in this instant matter (CIVSB2409307), in order to fold the PAGA claims into this matter for purposes of furthering a single settlement motion. The FAC alleges violations relating to: (1) minimum wages; (2) overtime; (3) meal periods; (4) rest breaks; (5) provision of accurate wage statements; (6) final pay; as well as claims for (7) violation of the unfair competition law (UCL) and (8) civil penalties pursuant to the PAGA. The UCL and PAGA claims are underpinned by the alleged wage-and-hour violations.

After commencing the various suits, the Plaintiff sought and received extensive discovery, including a substantial sampling of time and payroll records. Plaintiff also received policy documents. Thereafter, on April 22, 2025, the parties engaged in a full-day, arms-length mediation with Kelly Knight, an experienced neutral. The parties reached settlement and executed a long-form settlement agreement by August of 2025. Notice of the settlement was sent to the LWDA on October 15, 2025.

The parties successfully moved for Preliminary Approval of the Settlement before this Court on February 5, 2026. As preliminary matter, this Court found the total settlement amount of \$320,000.00 to be fair, reasonable, and adequate given the strength of the Plaintiff's case and the risks involved in litigation. Adequate discovery and investigation had occurred, and there was no evidence of fraud or collusion.

There are 345 class members and 155 PAGA aggrieved employees. (Tran Decl., ¶¶5-6 & 17.) Notices were mailed on or about March 12, 2026. (Tran Decl., ¶7.) There were 52 notices returned; however, 39 were re-mailed after skip-tracing efforts. (*Id.*, ¶8.) Thus, only 13 packets are considered undeliverable. (*Id.*, ¶9.) As of the date of this motion, there were *no* requests for exclusion, objections, or workweek disputes. (*Id.*, ¶¶11-13.) This Motion seeks final approval of the proposed settlement.

Statement of the Law

Settlement of a class action requires court approval. (Rules of Court, rule 3.769.) The moving party must demonstrate that the settlement is “fair, adequate and reasonable.” (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 126.) The court has “broad discretion in making this determination.” (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors may include “the strength of the plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintain class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.” (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors “is not exhaustive and should be tailored to each case.” (*Ibid.*) The court may “engage in a balancing and weighing of factors depending on the circumstances of each case.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245 overruled on other grounds.)

“Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement.” (*Wershba, supra*, 91 Cal.App.4th at p. 245, quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801.)

“The court must therefore scrutinize the proposed settlement agreement to the extent necessary to ‘reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.’” (*Ibid.*, quoting *Officers for Justice v. Civil Service Com’n* (9th Cir. 1982) 688 F.2d 615, 625.) The settlement is entitled to “a presumption of fairness . . . where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (*Kullar v. Foot Locker Retail* (2008) 168 Cal.App.4th 116, 128, quoting *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1802.)

Summary of the Proposed Class Settlement

The proposed final settlement terms are largely in line with those approved preliminarily: Defendants will pay a gross, non-reversionary settlement amount of \$320,000.00, from which will be deducted (1) \$106,666.00 for Class Counsel’s attorneys’ fees (1/3rd of the total); (2) costs of \$20,910.28; (3) Plaintiff’s enhancement fee of \$10,000.00; (4) claims administration fees of \$9,690.00; and (5) PAGA penalties of \$15,000.00 (of which \$11,250, or 75%, will go to the LWDA and \$3,750, or 25%, will go to the aggrieved employees).

This will leave a wage-and-hour only net settlement amount of a non-reversionary \$157,733.72. This amount would be split by the class of 345 employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be \$457.20.

Since there are 155 aggrieved employees for PAGA purposes, the average PAGA payout is \$24.19.

Tentative

The Court finds no evidence of fraud or collusion. Class counsel are able, experienced, and well-qualified to represent the class. The representative is also well qualified to represent. The settlement was reached through an arms-length negotiation. The Court incorporates the reasons for the preliminary approval, issued on February 5, 2026, into its ruling by this reference and would:

1. Certify the Class for settlement.
2. Approve the settlement as fair and reasonable, finding that class members were given notice, advised of their rights and to object or exclude themselves.
3. Appoint Terry Boyd as Class Representative and approve his service award of \$10,000.00.
4. Appoint the Mara Law Firm, PC, as Class Counsel for settlement purposes.
5. Approve administrative expenses as stated to Apex Class Action Administrators at \$9,690.
6. Approve the attorneys' fees as stated at \$106,666.00, with costs of \$20,910.28, for litigation of this action. The lodestar analysis generally supports attorneys' fees in line with apportionment. (See Mata Decl., ¶¶14-28 & Exh. 5.)
7. Direct the clerk to enter the Court's order as final judgment.
8. Reserve continuing jurisdiction for the purposes of implementing, enforcing, or administering the Settlement or enforcing the terms of the Judgment.
